THE SIKKIM PRIVATE UNIVERSITIES (ESTABLISHMENT AND REGULATION) (AMENDMENT) BILL, 2026
BILL NO. 05 OF 2026

A
BILL

to amend the Sikkim Private Universities (Establishment and Regulation) Act (Act No. 25) of 2025.

Be it enacted by the Legislature of Sikkim in the Seventy-seventh Year of the Republic of India, as follows: -

Short title, extent and commencement	1.	(1) (2) (3)	This Act may be called the Sikkim Private Universities (Establishment and Regulation) (Amendment) Act, 2026. It shall extend to the whole of Sikkim. It shall come into force on such date as the State Government may, by notification in the Official Gazette appoint.
Amendment of section 5	2.	(1)	In the Sikkim Private Universities (Establishment and Regulation) Act, 2025 (hereinafter referred to as the "Principal Act"), in clause (b) of sub-section (1) of section 5, for the words, symbols, numbers and brackets "as notified by the State Government vide Notification No. 4/LR&DMD/(R) dated: 29/02/08" appearing after the words "minimum period", the following words shall be substituted, namely:- "as notified by the State Government from time-to-time."
Amendment of section 6	3.	(1)	In the Principal Act in section 6, after sub-section (1), the following sub-section shall be inserted, namely:- "(1A) Notwithstanding anything contained in this Act, any private university that has not been issued a Letter of Authorization before the commencement of the Sikkim Private Universities (Establishment and Regulation) (Amendment) Act, 2026, shall not commence or undertake any academic or administrative operations unless and until such university obtains a Letter of Authorization from the Independent Regulatory Commission constituted under this Act; Provided that, prior to the issuance of such Letter of Authorization, the Independent Regulatory Commission shall conduct such scrutiny, inspection or verification of the institutional readiness, infrastructure, and regulatory compliance of such university as it may deem necessary;

			Provided further that, upon completion of such scrutiny or inspection, the Independent Regulatory Commission shall submit its report along with its recommendations to the State Government, and the State Government may thereafter grant approval for issuance of the Letter of Authorization subject to such conditions as it may deem fit."
Amendment of section 16	4.	(1)	In the Principal Act, in section 16, in sub-section (1) for clause (a), the following shall be substituted, namely:- "(a) to provide learning, teaching, capacity, capability and skills development and research and development in Higher and Technical Education covering Liberal Arts, Humanities, Social Sciences, Medical Sciences, Para-medical Sciences, Medical allied Sciences, Life Sciences and Bio technologies, Nano-Sciences and Technologies, Engineering, Technology, Management, Law, Business and Commerce, Applied and Creative Arts, Designing, Vocational Education, Media, Information and Communication Technology and Education, and any other course, per se and their inter-disciplinary, multi-disciplinary studies and development."
Amendment of section 18	5.	(1)	In the Principal Act, in section 18, for sub-section (15), the following shall be substituted, namely:- "to establish campuses for the purpose of achieving the objectives of the University."
Amendment of section 23	6.	(1)	In the Principal Act, in section 23, for sub-section (1), the following shall be substituted, namely:- "(1) The Vice-Chancellor shall be appointed by the Chancellor as per the qualifications prescribed by the University Grants Commission (UGC), and as recommended by a Search-cum-Selection Committee constituted for the said purpose in accordance with the regulations made by the University Grants Commission, as amended from time-to-time, and one member of such Search-cum-Selection Committee shall be nominated by the Chairman, University Grants Commission, and shall hold office for a period of 5 (five) years; Provided that after the expiry of the term of 5 (five) years, the Vice-Chancellor shall be eligible for re-appointment for another term of 5 (five) years in accordance with the provisions of this sub-section;

			Provided further that such re-appointment shall not exceed 70 (seventy) years of age under any circumstance."
Insertion of new section 72A Liability of the University and the Sponsoring Body	7.	(1)	In the Principal Act, after section 72, the following new section shall be inserted, namely:- (1) Notwithstanding anything contained in this Act or in any other law for the time being in force, every certificate, degree, mark sheet, award, diploma, course certificate, migration/transfer certificate, result, or any other credential (by whatever name called) issued, published, authenticated, counter-signed, digitally generated, or represented by the University at any time, shall be and shall always be deemed to have been issued solely on the responsibility and authority of the University and the Sponsoring Body, and not on behalf of the State Government. (2) The Sponsoring Body, and each individual member thereof (including owners, trustees, directors, office-bearers, controlling persons, or persons having management or decision-making control, by whatever designation called) shall be jointly and severally liable and accountable, with retrospective effect, for, – (a) the truthfulness, legality, validity and verifiability of every credential referred to in sub-section (1); (b) the maintenance, custody, integrity, auditability and timely retrieval of all underlying records, data and documents supporting such credential; (c) any misrepresentation, suppression, fraud, forgery, manipulation, tampering, irregularity, or unfair practice, whether by act or omission, in relation to admissions, examinations, evaluation, publication of results, issue of credentials, or any allied process; and (d) all civil consequences, including but not limited to refunds, restitution, compensation, damages, costs, penalties, and claims arising from or connected with the University's credentials and operations.

			(3) The liability under sub-section (2) shall apply to and shall be deemed always to have applied to, – (a) all credentials issued before the commencement of the Sikkim Private Universities (Establishment and Regulation) (Amendment) Act, 2026; and (b) all credentials issued after such commencement; and such liability shall be continuing and shall not be extinguished by resignation, cessation of membership, dissolution, winding up, closure of operations, repeal of the Act, or any change in the constitution or control of the Sponsoring Body. (4) The State Government and its officers shall not be liable or responsible, either directly or indirectly, for, – (a) the issue, genuineness, validity, equivalence, recognition, or acceptability of any credential of the University; (b) any misrepresentation or assurance made by the University, the Sponsoring Body, any centre, or any person claiming under them; (c) any loss, prejudice, or adverse consequence suffered by any student, parent, institution, employer, authority or any person due to any act or omission of the University or the Sponsoring Body; or (d) maintenance, custody, verification, issuance of duplicates, authentication, correction, or re-issuance of any credential or record of the University, whether during the subsistence of the University or thereafter. (5) The Sponsoring Body and each individual member thereof shall indemnify and keep indemnified the State Government, its officers and instrumentalities from and against all claims, proceedings, liabilities, costs, losses and expenses of whatsoever nature arising out of, –

			(a) any act, omission, representation, advertisement, promise or conduct of the University or Sponsoring Body; or (b) any credential referred to in sub-section (1) and any record connected therewith. (6) Without prejudice to any other action under this Act, where the State Government is satisfied that any misrepresentation, fraud, or irregularity has occurred in relation to any credential, it may, after recording reasons in writing, – (a) direct the University or Sponsoring Body to issue public clarification, undertake verification, and take corrective measures within a stipulated time; (b) recover costs or expenses incurred by the State Government for any inquiry, verification, or protective action, from the Sponsoring Body, and where necessary, from the Endowment Fund; and (c) initiate such proceedings as may be permissible in law against the Sponsoring Body and/or the individual members thereof. (7) The provisions of this section shall have effect notwithstanding anything inconsistent therewith contained in this Act, the rules, regulations, statutes, or any agreement, memorandum, undertaking or arrangement."
Amendment of Schedule (Part I)	8.	(1)	In the Sikkim Private Universities (Establishment and Regulation) Act, 2025 (hereinafter referred to as the "principal Act"), in the Schedule (Part I), in column (2), for the words "Name of Existing University", the words "Established under the Act" shall be substituted.
		(2)	In the principal Act, in the Schedule (Part I), –
		(i)	against serial number 6, in column (3), for the words, symbols and numbers "Constituency: 3 – Maneybung-Dentam", the words, symbols and numbers "Constituency: 4 – Gyalshing-Barnyak" shall be substituted.
		(ii)	against serial number 10, –

<table>
<tr><td></td><td></td><td></td><td colspan="4">(a) in column (2), for the words, figures and brackets "The Capital University (Amendment) Act, 2025 (Act No. 12 of 2025)", the words, figures and brackets "The Capital University Act, 2022 (Act No. 10 of 2022)" shall be substituted;
(b) in column (3), for the words, symbols and numbers "Constituency: 8 – Salfhari-Zoom", the words, symbols and numbers "Constituency: 8 – Salghari-Zoom" shall be substituted.</td></tr>
<tr><td></td><td></td><td>(iii)</td><td colspan="4">against serial number 11, –
(a) in column (3), after the words "Mahatma Gandhi University Sikkim", the following words, symbols and numbers "Constituency: 6 – Daramdin" shall be inserted;
(b) in column (4), for the words and numbers "Councile of Allied Sciences of India Unit No 981 Agarwal Millennium tower 2 Betaji palace Pitampura New Delhi", the words, symbols and numbers "Council of Allied Science of India, Unit No. 981, Agarwal Millennium Tower-II, Netaji Subhash Place, Pitampura, New Delhi-110034" shall be substituted.</td></tr>
<tr><td></td><td></td><td>(iv)</td><td colspan="4">against serial number 18, in column (3), for the words, symbols and numbers "Constituency: 11 – Namchi-Singhithang", the words, symbols and numbers "Constituency: 21 – Gnathang-Machong" shall be substituted.</td></tr>
<tr><td>Amendment of Schedule (Part II)</td><td>9.</td><td>(1)</td><td colspan="4">In the principal Act, in the Schedule (Part II), the following serial number and new entries shall be inserted, namely: –</td></tr>
<tr><td></td><td></td><td></td><td>(1)</td><td>(2)</td><td>(3)</td><td>(4)</td></tr>
<tr><td></td><td></td><td></td><td>"1.</td><td>Scholars University of Skills & Innovation</td><td>Scholars University of Skills & Innovation, Melli, Namchi District, Sikkim. Constituency: 12 – Melli</td><td>Pushpa Devi Memorial Trust, Near Bus Stand, City Plaza, Hanumangarh Jn., Rajasthan"</td></tr>
</table>

STATEMENT OF OBJECT AND REASONS

Whereas, the **Sikkim Private Universities (Establishment & Regulation) Act, 2025**, was enacted during December 2025. This parent/umbrella Act supersedes all individual university Acts and brings uniformity in legislation governing private universities in Sikkim. Therefore, to further strengthen this parent/umbrella Act, some **amendments** are required.

And whereas, Pushpa Devi Memorial Trust, a trust registered in Rajasthan, proposes to establish a **Scholars University of Skills & Innovation** at Melli in Namchi District, in Sikkim. The proposed university aims to provide specialised educational programmes for the youth of Sikkim and to contribute to the intellectual, inclusive and sustainable development of the people of Sikkim, through quality teaching, research and extension activities. The Scholars University of Skills & Innovation shall be a self-funded private university and envisages to be a world class higher education institution imparting quality education at par with global principles, and strives to contribute to the inclusive growth of society through pursuit of higher education.

With the above objectives in view, the Bill has been framed.

(RAJU BASNET)
MINISTER-IN-CHARGE
EDUCATION DEPARTMENT
GOVERNMENT OF SIKKIM

FINANCIAL MEMORANDUM

(The Bill does not involve any financial implication from the Consolidated Fund of the State)

(RAJU BASNET)
MINISTER-IN-CHARGE
EDUCATION DEPARTMENT
GOVERNMENT OF SIKKIM

MEMORANDUM REGARDING DELEGATED LEGISLATION

1. Clause 3 of the Bill empowers the State Government to issue of Letter of Authorisation.

2. Where the State Government is satisfied that any misrepresentation, fraud or irregularity has occurred in relation to any credential of the University/Sponsoring Body, Clause 7(6)(a) of the Bill empowers the State Government to direct the University/Sponsoring Body to issue public clarification, undertake verification, and take corrective measures within a stipulated time.

3. Clause 7(6)(b) of the Bill also empowers the State Government to recover costs/expenses incurred by the State Government for any inquiry, verification, or protective action, from the Sponsoring Body, and where necessary, from the Endowment Fund.

4. Clause 7(6)(c) of the Bill further empowers the State Government to initiate such proceedings as may be permissible in law against the Sponsoring Body and/or the individual members thereof.

The above delegation of power are, therefore, of normal in character.

(RAJU BASNET)
MINISTER-IN-CHARGE
EDUCATION DEPARTMENT
GOVERNMENT OF SIKKIM